

Residential Tenancy Agreement

Date	12 September 2014
The Landlords	Mrs Maura O'Connor Benny O'Connor
The Tenants	Mr Tomasz Holda Mr Frano Petrovic Ms Eriko Miki
The Property	21 Monteray Court Quincentennial Drive Salthill Galway

Note for Tenants

1. This is a Fixed Term Tenancy Agreement
2. The Residential Tenancies Act 2004 applies to this Agreement.
3. If you are unsure as to your obligations under this Agreement, then you are advised to take legal advice before signing.



PSRA Licence Number: 001876

Winters Property Management
Unit 5A, Liosban Business Park
Tuam Road
Galway City

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1. Parties and Principal Terms

Date: 12 September 2014

THIS AGREEMENT is made on the date specified above BETWEEN the Landlord and the Tenant(s) and includes all the covenants and conditions together with the First, Second and Third Schedules.

- (a) LANDLORD: **Mrs Maura O'Connor
Benny O'Connor**
- Address: **C/o Winters Property Management
Unit 5A, Liosban Business Park
Tuam Road
Galway City**
- (b) TENANT(s): **Mr Tomasz Holda
Mr Frano Petrovic
Ms Eriko Miki**
- Address: **86-212 Stolno Stolno 72 Poland**
- (c) PROPERTY: **21 Monteray Court Quincentennial Drive Salthill Galway**
- including the fixtures and fittings at the property together with any furniture, carpets, curtains and other effects listed in the inventory (where applicable) in the First Schedule, together with the designated Car Space (if any) numbered: **N/a**
- (d) TERM: **6 Months (Expiring on 11Mar2015)**
- (e) TERM COMMENCEMENT DATE: **12 September 2014**
- (f) BREAK CLAUSE OPTION: **NONE**
- (g) MARKET RENT: **€ 1000.00 per calendar month without deduction**
- (h) SECURITY DEPOSIT: **€ 1100.00**
- (i) PAYMENT METHOD: **The first month's rent in advance by bank draft, and thereafter in advance by one monthly standing order payment of €1000.00 (or at the Landlord's option by direct debit) on or before the 12th day of each month , direct to:**
- Bank: **AIB
18 Eyre Square
Galway City**
- Account Name: **Winters Property Management**
- IBAN: **IE14 AIBK 9372 2334 5838 19**
- BIC: **AIBK IE 2D**
- (j) POINT OF CONTACT ADDRESS: **Winters Property Management
Unit 5A, Liosban Business Park
Tuam Road
Galway City**
- Phone: 091771898**

2. Definitions

In this Agreement, unless the context otherwise requires, the following expressions shall have the following meanings:

- 2.1 "The Landlord" includes the persons for the time being entitled to the reversion at the end of the tenancy.
- 2.2 "The Tenant" includes the successors in title. Whenever there is more than one Tenant, each and every covenant and obligation can be enforced against all the tenants jointly and against each individually.

3. Tenant Covenants

- 3.1 The Tenant pays the deposit as security for their performance of the tenant's obligations and to pay and compensate the Landlord for any breach of those obligations. It is agreed that this sum shall not be transferable by the Tenant in any way, and at any time, against payment of the rent and that no interest shall be payable on this deposit. The balance of the deposit to be paid to the Tenant only after vacation of the property, such amount to be assessed at the outgoing inspection upon termination of this Agreement.
- 3.2 To pay the Rent on the date and in the manner specified in Section 1 of this Agreement (Parties and Principal Terms). The first payment being made on the Commencement Date.
- 3.3 The Tenant pays, at the option of the Landlord or Landlord's Agent, an administrative charge of €30 for each written demand sent should the Tenant be in persistent arrears of rent.
- 3.4 To pay promptly to the authorities or to whomever they are due, local authority, refuse charges and outgoings (including gas, water, electricity, cable television and telephone if any, relating to the property) including any which are imposed after the date of this Agreement (even if of a novel nature) and to pay the total cost of any re-connection fee relating to the supply of gas, water, electricity, cable television and telephone if the same is disconnected or the operating company changed.
- 3.5 Not to damage or injure the property or the Landlord's contents or make any alteration or addition to it. Any redecoration is to be made only with the prior written consent of the Landlord or his Agent.
- 3.6 Not to leave the property vacant for more than 30 consecutive days and to properly secure all locks and bolts to the doors, windows and other openings if leaving the property unattended.
- 3.7 To keep the interior of the property and the contents in good and clean condition, damage by accidental fire and reasonable wear and tear excepted, and to keep the property at all times well and sufficiently aired and warmed during the tenancy.
- 3.8 To immediately pay the Landlord or his Agent, the value of replacement of any furniture or effects lost, damaged or destroyed, or at the option of the Landlord, replace immediately any furniture or effects lost, damaged or destroyed and not to remove or permit to be removed, any furniture or effects from the property.
- 3.9 Immediately before handing up possession of the premises on the termination of this Agreement to thoroughly clean all cookers, fridge, sanitary apparatus and other appliances and all carpets, floor coverings and furnishings and to deliver up same in a sound and clean condition, fair wear and tear excepted; provided always that breach of this condition shall entitle the Landlord to deduct the cost of cleaning the premises from the Security Deposit.
- 3.10 To leave the contents at the end of the tenancy in the same places in which they were positioned at the commencement of the tenancy.

- 3.11** That the Landlord, or person authorised by the Landlord or the Landlord's Agent, may at reasonable times, on giving reasonable notice (unless in the case of emergency) enter the property for the purpose of viewing, inspecting its condition and state of repair, or for the purpose of repair, maintenance or repainting.
- 3.12** Not to assign or sublet, part with possession of the property, or let or allow any other person live at the property without the Landlord's written consent and to pay to the Landlord any reasonable costs or expenses incurred in deciding this request whether consent is granted or refused.
- 3.13** To use the property as a single, private dwelling and not to use it, or any part of it, for any other purpose, nor to allow anyone else to do so.
- 3.14** Not to receive paying guests, or carry on, or permit to be carried on, any business, trade or profession on or from the property.
- 3.15** Not to do, or permit, or suffer to be done in or on the property, any act or thing which may be a nuisance, damage or annoyance to the Landlord, or to the occupiers of the neighbouring premises, or which may void any insurance of the property or cause the premiums to increase.
- 3.16** Not to keep any animals or birds, or any living creature on the property without the Landlord's written consent. Such consent if granted, to be revocable at will by the Landlord or the Landlord's Agent.
- 3.17** To keep the gardens, patios and terraces (if any) including all driveways, pathways, lawns, hedges, landscaping, ornamental features including water features neat, tidy and properly tended at all times and not remove any trees or plants.
- 3.18** To replace broken glass in doors and windows damaged during the tenancy.
- 3.19** Not to alter, change or install any locks on any doors or windows in or about the property, or have any additional keys made for any locks without the prior written consent of the Landlord or the Landlord's Agent.
- 3.20** Not to use the property for any illegal or immoral purpose.
- 3.21** To pay and compensate the Landlord fully for any costs, expense, loss or damage incurred or suffered by the Landlord as a consequence of any breach of this Agreement on the part of the Tenant and to indemnify the Landlord from and against all actions, claims and liabilities in that respect.
- 3.22** To pay and compensate the Landlord fully for any cost and/or expense incurred in the preparation and service of notice and of any proceedings under the Landlord and Tenant Law Amendment Act Ireland 1860 and the Conveyancing Act 1881.
- 3.23** To notify the Landlord, or the Landlord's Agent, promptly in writing, of any disrepair, damage or defect in the property, or of any event which causes damage to the property, or which may give rise to a claim under the insurance of the property, or of any breakdown of appliances. Failure to do so may result in the Tenant being liable for any subsequent damage.
- 3.24** Not to glue, stick or otherwise fix anything whatsoever to the exterior or interior walls, doors, windows, floors or other surfaces of the property without the Landlord's written consent.
- 3.25** To take all reasonable precautions to prevent damage by frost.
- 3.26** Where the Landlord's interest is derived from another lease ("The Head Lease" in the case of apartment blocks or town-house developments) then it is agreed that the Tenant will observe the rules and other restrictions in the Head Lease applicable to the property, as well as any other rules and regulations as may appear in the Special Conditions in the First Schedule to this Agreement.

- 3.27** In order to comply with the Gas Safety Regulations, it is necessary:
(a) That the ventilation provided for this purpose in the property should not be blocked.
(b) That brown or sooty build up on any gas appliance should be reported immediately to the Landlord or the Landlord's Agent.
- 3.28** To keep the hall, passages and staircase (if any) leading to the property, and drains, free from obstruction and the chimneys swept as often as necessary.
- 3.29** Not to introduce into the property any portable heaters fired by liquid or bottled gas without the Landlord's prior written consent.
- 3.30** That the Tenant shall be responsible for testing all smoke detectors (if any) fitted in the property on a regular basis and replace the batteries as necessary.
- 3.31** Within the last 1 month of the tenancy to permit the Landlord, or any person authorised by the Landlord or the Landlord's Agent at reasonable hours of the day or night, to enter and view the property with prospective Tenants or purchasers.
- 3.32** To pay the Stamp Duty charged on the original and counterpart of this Agreement, if any.
- 3.33** Not to hang any washing out of the windows of the property and to have all windows cleaned at least 4 times a year.
- 3.34** To give to the Landlord promptly, a copy of any notice received concerning the property.
- 3.35** During the last month of the tenancy, to allow the Landlord to affix a Notice to the outside of the property announcing that it is for sale or to let.
- 3.36** The Tenant shall put in place and maintain full and adequate insurance cover in respect of all the Tenant's property on or in the premises, and all persons in the premises with the Tenant's consent, and shall indemnify the Landlord from all claims whatsoever in respect of loss, damage or injury to such property or persons.

4. Landlord Covenants

- 4.1** Provided that the Tenant shall pay the Rent and perform the covenants on his part already referred to, the Landlord shall permit the Tenant to have quiet enjoyment of the property during the Term agreed without interruption by the Landlord or the Landlord's Agent.
- 4.2** The Landlord will return to the Tenant any Rent payable for any period during which the property may have been rendered uninhabitable by fire or any other risk which the Landlord has insured against.
- 4.3** All necessary consents have been obtained to let the property.
- 4.4** The Landlord agrees to maintain the structure of the building and maintain the interior and fittings to the standard that existed at the commencement of this Agreement and to carry out any repairing obligations as required by the Local Authority in charge.
- 4.5** The Landlord shall keep insured in the Landlord's name:
(a) the property against loss or damage by fire, lightning, explosion, storm, flood, burst pipes, subsidence, riots or civil commotion, malicious damage and accidental damage, impact and such other risks (if any) as the Landlord, at the Landlord's sole discretion, may from time to time consider prudent or desirable including employer's and public liability or any other liabilities that are resulting from the Landlord's ownership of the property.
(b) the Landlord's contents but excluding the Tenant's contents.
- 4.6** To make good or have made good any damage caused to the property by any workmen authorised by the Landlord or the Landlord's Agent to be on the premises under the terms of this Agreement.

- 4.7** When the tenancy ends, to repay the security deposit to the Tenant without interest, after all sums due (if any) to the Landlord under the terms of this Agreement, or following breach of any of its terms, have been deducted.
- 4.8** The Landlord shall register this Tenancy Agreement with the Private Residential Tenancies Board (PRTB) as required under the Residential Tenancies Act 2004.
- 4.9** To enforce the covenant on anti-social behaviour by the Tenant contained in the 2nd Schedule. (A third party directly affected by the failure to do so may bring a complaint against the Landlord to the Private Residential Tenancies Board under the Residential Tenancies Act 2004.)

5. Both Parties Agree

- 5.1** Termination or continuation of this Tenancy Agreement by the Landlord or Tenant may only be made under the provisions of the Residential Tenancies Act 2004. *Details are contained in the Second Schedule of this Tenancy Agreement.*
- 5.2** Any notice served by the Landlord on the Tenant shall be sufficiently served if sent by registered or recorded post to the Tenant at the property, or to the last known address of the Tenant, or left addressed to the Tenant at the property.
- 5.3** The property is let together with the special conditions (if any) listed on the First Schedule attached to this Agreement.
- 5.4** That the information required under the Housing (Rent Books) Regulations 1993 made under the Housing (Miscellaneous Provisions) Act 1992 is set out in the Third Schedule and that this Agreement constitutes the Rent Book for the purposes of these regulations.
- 5.5** The Landlord agrees to let and the Tenant agrees to take the property and contents for the Term and at the Market Rent payable in Clause 1.
- 5.6** Any notice required to be given to the Landlord under this Agreement shall be duly served if delivered by hand or sent by registered or recorded post, addressed to the Landlord at the Point Of Contact in Clause 1, unless the Tenant is notified of a different address. If the Landlord resides outside the State, then notices to the Landlord shall be served if sent by ordinary post addressed to that Agent at his address as notified by the Landlord to the Tenant.

6. First Schedule

Inventory

Please see attached pages

Management Company

Not Applicable

House Rules Not Applicable

Building Energy Rating C3 (Issue Date 28May2014 Until Date 28May2024)

Special Conditions

6.1 The Landlord is entitled to recover the property under the provisions of the Residential Tenancies Act 2004; should the landlord intend to sell the dwelling in the next 3 months; should the landlord require the dwelling for own or family member occupation; should the landlord intend to refurbish the dwelling; should the landlord intend to change the business use of the dwelling.

6.2 Assignment or subletting of contracts once approved by the Landlord incurs an immediate €30 administration fee. This must be paid to the agency prior to contracts being assigned.

6.3 If a television is currently part of the inventory, it is an added bonus, therefore should this item cease to work it is not subject to repair/replacement.

7. Second Schedule

RESIDENTIAL TENANCIES ACT 2004

1. These details do not purport to be a legal interpretation of the legislation.
2. The Landlord may terminate this Tenancy Agreement due to anti-social behaviour by the Tenant (or the Tenant allowing such behaviour) within the dwelling.

Anti-social behaviour within the dwelling includes behaviour that constitutes the commission of an offence, causes fear, danger, injury, damage or loss, or includes violence, intimidation, coercion, harassment, obstruction or threats. It also includes persistent behaviour that prevents or interferes with the peaceful occupation of other dwellings within the building or in its vicinity.

The Notice Period for such a Termination by the Landlord is 28 days or 7 days in the case of a more serious breach.
3. The Landlord may terminate this Tenancy Agreement for non payment of rent. A 14 day Service of Notice will issue demanding full and immediate payment. Failure by the Tenant to comply will result in a 28 day Notice Of Termination by the Landlord.
4. The Landlord may terminate this Tenancy Agreement for any un-remedied breach of Covenant by the Tenant. The Notice Period for such a Termination by the Landlord is 28 days.
5. On expiration of this Tenancy Agreement the tenancy may continue after the term as follows (first subject to extending the lease to the month end, if applicable):
 - for a further fixed term, by mutual agreement.
 - by the Tenant serving on the Landlord notice to claim a Part 4 Tenancy for 4 years commencing from the original Commencement Date, provided that the Tenant has been in continuous occupation for 6 months. Such notice must be received no earlier than 3 months and no later than 1 month prior to the expiry of this Agreement.
 - by mutual agreement, or in the absence of any formal agreement to continue after the term, the tenancy will continue as a periodic month-to-month under the original terms and conditions of this Agreement.

Copies of the Residential Tenancies Act 2004 are available at <http://www.opw.ie/governmentpublications>

8. Third Schedule

STATEMENT OF INFORMATION REQUIRED UNDER THE HOUSING (RENT BOOKS) (AMENDMENT) REGULATIONS 2010

1. This statement of information is in accordance with the Housing (Rent Books) (Amendment) Regulations 2010. It does not purport to be a legal interpretation.
2. The tenant of a house is, unless otherwise expressly provided for in a Lease, entitled to quiet and peaceable enjoyment of the house without the interruption of the Landlord or any other person during the term of the tenancy for so long as the tenant pays the rent and observes the terms of the tenancy.
3. The Landlord is obliged to provide a tenant with a rent book for use throughout the term of the tenancy. The Landlord must enter particulars relating to the tenancy in the rent book, and, in the case of a new tenancy, complete the inventory of furnishings and appliances supplied with the house for the tenant's exclusive use.
4. The Landlord is obliged to keep the particulars in the rent book up to date. Where the rent or any other amount due to the Landlord under the tenancy is handed in person by the tenant,

or by any person acting for the tenant, to the Landlord, the Landlord must, on receipt, record the payments in the rent book or acknowledge it by way of receipt. Payments not handed over directly, for example, those made by standing order or direct debit, must, not more than three months after receipt, either be recorded by the Landlord in the rent book or acknowledged by way of statement by the Landlord to the tenant.

5. The tenant is obliged to make the rent book available to the Landlord to enable the Landlord to keep the particulars in it up to date.
6. From the 1st February 2009, the Housing (Standards for Rented Houses) Regulations 2008 come into operation. These regulations apply immediately and in full to properties let for the first time after this date. Properties that have been let between 1st September 2004 and 31st January 2009 are deemed to be "existing tenancies" for the purposes of these Regulations. Such tenancies are partly exempt from the Regulations until the 1st February 2013 during which time the Housing (Standards for Rented Houses) 1993 continue to apply. Neither the 1993 nor the 2008 Regulations apply to houses let on a temporary or holiday basis, local authority demountable dwellings and communal type accommodation provided by the Health Service Executive and certain approved non-profit or voluntary bodies. The standards relate to structural condition, heating facilities, food preparation and storage, laundry, ventilation, lighting, fire safety, refuse facilities, electricity and gas.
7. The duties of a Landlord referred to in paragraphs 5 to 6 above may be carried out on the Landlord's behalf by a duly appointed Agent. Any reference in a statement to "house" includes a flat or maisonette.
8. Copies of the Housing (Rent Books) Regulations 1993 and Amendments and the Housing (Standards for Rented Houses) Regulations 1993, 2008 may be purchased from the Government Publications Sale Office, Sun Alliance House, Molesworth Street, Dublin 2, or from the Housing Authority.
9. Responsibility for the enforcement of the law relating to rent books and standards rests with the housing authority for the area in which the house is located. The name, address and telephone number of the relevant housing authority are as follows:

Galway City Council
City Hall
College Road
Galway

Phone: 091-536400

9. Landlord and Tenant Signatures

SIGNED by the Landlords:

Mrs Maura O'Connor

Maura O'Connor

Benny O'Connor

Benny O'Connor

(Witness)

Dated the: 1 / 10 / 14

SIGNED by the Tenants:

Mr Tomasz Holda

Tomasz Holda

Mr Frano Petrovic

Frano Petrovic

Ms Eriko Miki

Eriko Miki

(Witness)

Dated the: 12 / 09 / 14

10. Main Points to Note - Tenant Information

IMPORTANT: The following Special Provisions, more particularly described in the Tenants Covenants in Clause 3 of the Agreement, are repeated here for the avoidance of any doubt.

From 1st September 2004, the Residential Tenancies Act, imposes obligations and rights on both the Landlord and Tenant. These obligations and rights form part of this Tenancy Agreement and cannot be contracted out of. See www.prtb.ie for further information.

1. The Tenant may be evicted for anti-social behaviour, or allowing such behaviour within the dwelling.
2. The Tenant is responsible for the payment of the agreed rent for the entire agreed term. The Tenant shall not be entitled to use the security deposit as the final months rent.
3. Any damage to fixtures and fittings or breakdown of appliances must be reported immediately to the Landlord or his Agent.
4. The Tenant shall pay water rates, cable tv charges and Local Authority charges levied on the property.
5. The Tenant shall not carry out in the property any profession or business whatsoever whether for gain or otherwise. Should the Tenant contravene this regulation, this Agreement shall terminate immediately, but without prejudice to any antecedent rights of the Landlord.
6. The Tenant agrees to insure under separate cover all Tenants property and Tenants liability to the public.
7. The Tenant agrees to abide by the rules and regulations of and any notices issued by the Management Company or Managing Agents in charge of the Property or any common area serving the Property.
8. The Tenant agrees, subject to reasonable notice and by prior appointment, to permit the Landlord or his Agent to enter upon the Property at regular intervals throughout this Agreement for the purpose of inspecting the premises.
9. Within one month prior to the termination of this Agreement, the Tenant agrees to permit the Landlord or his Agent to enter upon the Property for the purpose of showing it to prospective tenants, at any reasonable time and by prior appointment.
10. The Tenant hereby agrees upon signing this Agreement that the property is being handed over in good and clean condition throughout and that the property be handed back in the same condition, fair wear and tear excepted.
11. Immediately prior to the termination of this tenancy, the Tenant agrees to thoroughly clean the cooker, fridge, sanitary apparatus and other appliances, and all carpets, curtains, floor coverings, furnishings and windows of the Property, and acknowledges that in the event that the Property is not handed back in perfectly clean and tidy condition, the Landlord shall be entitled to deduct the cost of cleaning the Property from the security deposit.
12. Punctual payment without prior demand and in the manner specified shall constitute the essence of this Agreement. The Tenant hereby agrees to pay, on demand, an administrative charge of €30 to the Landlord or his Agent, for each and every written demand issued, should the Tenant be in persistent arrears of rent.
13. The Tenant agrees to pay the Stamp Duty (if any) on this Agreement and counterpart.
14. If the Tenant is unsure of his/her obligations under this Agreement, then he/she is advised to take legal advice before signing.

Notice served in accordance with section 22 of the Residential Tenancies Act 2004 (as amended)

Notice of Rent Review

The purpose of this notice is to inform you the tenant(s), that a review of the rent under your residential tenancy has been carried out and a new rent set on foot of that review. This notice states the amount of the new rent and the date from which it is to have effect.

Any dispute in relation to the new rent must be referred to the Residential Tenancies Board (RTB) under Part 6 of the Residential Tenancies Act 2004 before:

- (a) the date the new rent becomes payable (this must be at least 90 days after the date of service of this notice); or**
- (b) the expiry of 28 days from the date that the tenant receives this notice, whichever is the later date.**

Part A - Tenant Details*

Name of Tenant 1

Mr David Souto

Name of Tenant 2

Mr Diego Esteban Bertossa

Name of Tenant 3

Mr Elias Bagueste Amate

Name of Tenant 4

**If there are more than four tenants, include details of these tenants on a separate page and attach to this notice.*

Part B - Dwelling Subject to Tenancy

1. RT Number:

(Registered Tenancy Number)

RT-1122-00344943-25

2. Address of Dwelling
Subject to Tenancy:

21 Monteray Court

Quincentennial Drive, Salthill, Galway

Eircode:

H91E789

Part C - Landlord /Authorised Agent

3. Landlord's/Authorised Agent's name: **M&C Property**

4. Landlord's/Authorised Agent's contact details: **Rebecca Scully**

letting@mcp.ie

Part D - Details of New Rent

5. Previous rent amount: **€ 1,336.00**

6. Date last notice of rent review was served: **12 / September / 2024**

7. New rent amount: **€ 1,361.00**

(For tenancies in Rent Pressure Zones (RPZs), please use the RTB Rent Pressure Zone calculator on the RTB's website (www.rtb.ie) to determine the maximum rent increase, if any, that can apply. Please print off or save a copy of the relevant calculation provided by the calculator for your records and also attach a copy with this notice.

8. Date from which new rent becomes payable:

12 / January / 2026

Visit www.rtb.ie to use the Rent Pressure Zone calculator to automatically calculate the new rent. It is required that landlords attach a copy of that calculation to this Notice of Rent Review.

This Notice of Rent Review must be served by the Landlord on the Tenant(s) at least 90 days before the new rent becomes payable. There are also restrictions on how frequently rent reviews can take place – once every 12 months for tenancies located in RPZs and every 24 months for tenancies located outside RPZs. For more details on rent reviews and to find out if your tenancy is in a RPZ, visit www.rtb.ie

Landlords must inform the RTB of the new rent and any updated details for the tenancy register, within one month of the new rent becoming payable. For the consequences of failing to do so, see the Important Note below.

If a landlord does not comply with the requirements for setting rent in RPZs, the landlord shall be guilty of an offence and may be liable to a sanction by the RTB – see the Important Note below.

Part E - Details of Comparable Dwellings

9. I, **Mrs Maura O Connor**, state that in my opinion the new rent is not greater than the market rent, having regard to the other terms of the tenancy, and letting values of dwellings of a similar size, type and character to the dwelling subject to tenancy and situated in a comparable area as the the dwelling subject to tenancy.

The amount of rent sought for 3 dwellings of similar size, type and character to the dwelling subject to tenancy and situated in a comparable area is set out below.

“Amount of rent sought” means the amount of rent specified for the letting of a dwelling in an advertisement. The date of the advertisement must be within the 4 week period immediately preceding the date on which this notice is served.

The landlord must provide the details of each comparable dwelling below (size, type, character and address) and specify the amount of rent sought.

	Details	Rent
Dwelling 1	Rockfield Park, Rahoon, Co. Galway 3 Bed & 2 Bath	€ 1,630.00
Dwelling 2	Maolcnoc, Ballymoneen Road, Co. Galway 3 Bed & 3 Bath	€ 3,250.00
Dwelling 3	11 Ardoon, Upper Salthill, Co. Galway 3 Bed & 3 Bath	€ 3,500.00

It is recommended that landlords attach copies of the 3 advertisements to this notice.

Part F - RPZ Exemption

This Part must only be filled out by a landlord where the dwelling subject to tenancy is in a RPZ and the landlord seeks to rely on one of the exemptions to the requirement that the rent set must be calculated in accordance with the Rent Pressure Zone Calculator (see s.19(5)(b) and (5A) of the Residential Tenancies Act 2004 and the RTB's website, www.rtb.ie).

To rely on the RPZ exemption for a rent review, there must have been a **substantial change in the nature of the accommodation**. There will be a "substantial change in the nature of the accommodation" where one of the 3 categories of works identified below have been carried out **and where such works do not solely consist of works carried out to comply with the landlord's obligation under section 12(1)(b) of the Residential Tenancies Act 2004, including to meet the minimum standards for residential rented accommodation**. The substantial change must result in the market rent for the dwelling subject to tenancy being greater than when the rent was last set.

10. I, , confirm that the restrictions on setting rents in RPZs do not apply to the dwelling subject to tenancy by reason of the exemption selected below.

Please tick the exemption relied on:

- a. Exemption 1 (Permanent Extension) ☐

Works were carried out that consist of a **permanent extension** to the dwelling subject to tenancy that increased the floor area (within the meaning of Article 6 of the Building Regulations 1997 (S.I. No. 497 of 1997)) of the dwelling by an amount equal to **not less than 25% of the floor area** (within such meaning) of the dwelling as it stood immediately before the commencement of those works.

- b. Exemption 2 (BER improved by 7 or more) ☐

In the case of a dwelling to which the European Union (Energy Performance of Buildings) Regulations 2012 (S.I. No. 243 of 2012) apply, works that resulted in the BER (within the meaning of those Regulations) being **improved by not less than 7 building energy ratings**.

Part F - RPZ Exemption (continued)

- c. Exemption 3 (Other works as required below) ☐

Works were carried out to the dwelling subject to tenancy that resulted in any 3 or more of the following (please tick as appropriate):

The internal layout of the dwelling being permanently altered; ☐

The dwelling being adapted to provide for access and use by a person with a disability, within the meaning of the **Disability Act 2005**; ☐

A permanent increase in the number of rooms in the dwelling; ☐

In the case of a dwelling to which the European Union (Energy Performance of Buildings) Regulations 2012 (S.I. No. 243 of 2012) apply and that has a BER of D1 or lower, the BER (within the meaning of those Regulations) being improved by **not less than 3 building energy ratings**; ☐

In the case of a dwelling to which the European Union (Energy Performance of Buildings) Regulations 2012 (S.I. No. 243 of 2012) apply and that has a BER of C3 or higher, the BER (within the meaning of those Regulations) being improved by **not less than 2 building energy ratings**. ☐

11. I, , confirm that the works carried out and identified by the box(es) ticked above do not solely consist of works carried out for the purposes of complying with a landlord's obligation under section 12(1)(b) of the Residential Tenancies Act 2004, as amended, including to meet the minimum standards for residential rental accommodation. ☐

(Tick the box provided to confirm).

If a landlord relies on one of the exemptions above, the landlord must also serve a RPZ Notification of Exemption form on the RTB (together with supporting documents) within one month of this notice being served. For the consequences of failing to do so, see the Important Note below.

Part G - Declaration by the Landlord

This section must be completed for all rent reviews.

12. I declare that all the information that I have given on this notice is correct.

Signature:

or

Signature:

Name:

in BLOCK CAPITALS

REBECCA SCULLY, M&C PROPERTY

Date signed & served:

12 / September/ 2025

Checklist for Landlords

Where a landlord carries out a rent review, the landlord must:

1. Serve a valid notice of rent review on the tenant (in the form attached). ☐
2. Inform the RTB of the new rent set and any other details that have changed since the tenancy was last registered, within one month of the new rent becoming payable (the easiest thing to do is to complete the **Tenancy Update form** on the RTB's website and send it to the RTB). ☐
3. Where a landlord relies on an exemption to the RPZ rent increase restriction, serve the RTB with the prescribed change to Notice of Exemption from RPZ Rent Restriction within one month of any notice of rent review being served (visit www.rtb.ie for the prescribed form). The landlord must attach documents that support the exemption relied upon. ☐

Rent Reviews and Rent Pressure Zones (RPZs)

Please see the RTB website for further information and assistance in relation to rent reviews in RPZs (www.rtb.ie) including a Rent Pressure Zone Calculator to calculate the maximum permissible rent increase (if any) for a particular dwelling.

Offences

A person will be guilty of an offence under the Residential Tenancies Act 2004 where the person:

- a) fails to comply with the RPZ rent increase restriction (Sections 19(4A) and (6A) of the **Residential Tenancies Act 2004** refers);
- b) fails to comply with the requirement to serve the RTB with the prescribed Notice of Exemption from the RPZ rent restriction and supporting documents within one month of the setting of the rent (Sections 19(5B) and (6C) of the **Residential Tenancies Act 2004** refers);
- c) includes information in or with the prescribed Notice of Exemption from the RPZ rent restriction knowing it to be false or misleading in a material respect or is reckless as to whether it is false or misleading (Sections 19(5B) and (6B) of the **Residential Tenancies Act 2004** refers).

A person guilty of an offence under the **Residential Tenancies Act 2004** shall, in accordance with section 9 of that Act, be liable on summary conviction to a Class B fine (currently, valued to a maximum of €4,000 under the **Fines Act 2010**) or imprisonment for a term not exceeding 6 months or both.

If the contravention in respect of which a person is convicted of an offence under the **Residential Tenancies Act 2004**, is continued after the conviction, the person is guilty of a further offence on every day on which the contravention continues and for each such offence the person shall be liable on summary conviction to a Class E fine (currently, valued to a maximum of €500 under the **Fines Act 2010**).

Sanctions

The RTB has an investigations and sanctions unit dedicated to investigating certain potential breaches of the Residential Tenancies Act 2004 by a landlord. The breaches of the law that the RTB may investigate are referred to as "Improper Conduct" (Part 7A and Schedule 2 of the Residential Tenancies Act 2004 refer).

Improper Conduct includes where the landlord contravenes:

- a) the RPZ rent increase restriction under section 19(4A) of the **Residential Tenancies Act 2004**;
- b) the requirement to serve the RTB with the prescribed Notice of Exemption from the RPZ rent restriction and supporting documents within one month of the setting of the rent;
- c) the requirement to inform the RTB of an alteration to the rent payable and any other details that have altered since the tenancy was last registered within one month of such an alteration occurring.

Improper conduct by a landlord can result in the RTB imposing a fine of up to €15,000 and a further €15,000 in costs.

**Residential Tenancies Board****Rent Pressure Zone Calculation**

Summary of results for maximum rent increase permitted for dwelling in Rent Pressure Zone.

Address:	Local Electoral Area (LEA):	In Rent Pressure Zone:	Designation Date:
Apartment 21 Monterey Court Salthill H91 E789	GALWAY CITY WEST	YES	27/01/2017

Relevant HICP Index Values:

120.5 : Aug 2024 * most recently available HICP value on date of previous rent setting

122.8 : Aug 2025 ** Last published HICP value

HICP %	2% Cap
Change:	Rate:
1.9%	2.0%

Previous rent amount:

€1336.00

Date rent was last set:

12-09-2024

Date new rent set:

12-09-2025

Maximum rent increase permitted, if any:

€25

There is no legal requirement on a landlord to increase the current rent amount.

There is no legal obstacle to a landlord reducing the current rent amount.

Calculation:

€1336.00 * 1.9% = €25



HICP Index Table:- Complete table can be viewed on www.rtb.ie

YEAR	JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEP	OCT	NOV	DEC
2016	98.7	99.1	99.4	99.7	100.2	100.9	100.6	100.4	100	99.6	99.5	99.4
2017	98.9	99.4	100	100.4	100.2	100.3	100.4	100.8	100.2	100.1	100	99.9
2018	99.2	100.1	100.5	100.3	100.9	101	101.4	101.7	101.4	101.2	100.8	100.7
2019	100	100.8	101.6	102	101.9	102.1	101.9	102.3	102	101.8	101.6	101.8
2020	101.1	101.7	102.1	101.7	101.1	101.5	101.3	101.2	100.8	100.3	100.6	100.8
2021	101	101.3	102.2	102.8	103	103.1	103.5	104.2	104.6	105.4	106	106.5
2022	106.1	107.1	109.3	110.3	111.5	113	113.4	113.6	113.6	115.3	115.5	115.2
2023	114.1	115.8	116.9	117.2	117.5	118.4	118.6	119.2	119.3	119.5	118.4	118.9
2024	117.2	118.5	118.9	119.1	119.8	120.2	120.4	120.5	119.3	119.6	119	120.1
2025	119.2	120.2	121	121.5	121.5	122.1	122.3	122.8				

Information

The RTB is required by law to establish and maintain a RPZ calculator and publish a table of HICP values to assist both landlords and tenants understand how to lawfully set rents in a RPZ. The calculator will identify the percentage difference (if any) between the HICP value on the date the rent was previously set and the HICP value that applies on the date the new rent is set.

Any rent increase in a RPZ is prohibited from exceeding general inflation (as recorded by the HICP inflation rate) and cannot increase by more than 2% per annum pro rata, where HICP inflation is higher. Rent may not be set above any permissible increase set out on the RPZ calculator.

The cap of 2% per annum pro rata will result in lower rent increases in RPZs during times of high inflation. The calculator may indicate that no rent increase is allowed.

There is no legal requirement on a landlord to increase the current rent amount. There is no legal obstacle to a landlord reducing the current rent amount.

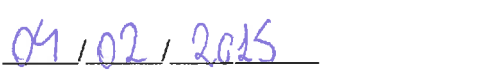
Residential Tenancy Agreement

Change of Tenant LE2838

Dated: 8 January 2015

THIS AGREEMENT is made on the date specified above BETWEEN the Landlord and the Tenant(s) and is supplemental to the Original Tenancy Agreement dated 12 September 2014 appended hereto.

All covenants and conditions of the Original Tenancy Agreement remain in force, except as follows:

Amendment	New Tenant Mr David Souto PPS 9354650U
Effective From:	20 December 2014
Property	21 Monteray Court Quincentennial Drive Salthill Galway
Landlord	 Mrs Maura O'Connor
Landlord	 Benny O'Connor
Tenant Name(s)	 DAVID SOUTO
Tenant Signature(s)	
Dated	 01 / 02 / 2015
Witness	

Tenancy Agreement History

Date: 8 January 2015

Property: 21 Monteray Court Quincentennial Drive Salthill Galway

Lease Code: LE2838

PRTB Reference: UNKNOWN

Operation	Start Date	Expiry Date	Rent €	Deposit €	Comment
Initial Lease (M)	12Sep2014	11Mar2015	1000.00	1100.00	Initial Rent + Deposit (M)
Tenant Amendment	20Dec2014				See Document For Details

Residential Tenancy Agreement

Change of Tenant LE6027

Dated: 7 February 2025

THIS AGREEMENT is made on the date specified above BETWEEN the Landlord and the Tenant(s) and is supplemental to the Original Tenancy Agreement dated 12 September 2024 appended hereto.

All covenants and conditions of the Original Tenancy Agreement remain in force, except as follows:

Amendment(Part C):

Add New Tenant Details Mr Diego Esteban Bertossa

Tenant to be Removed na

Amendment(Part H):

Effective From: 1 October 2024

Property 21 Monteray Court Quincentennial Drive Salthill Galway H91 E789

Landlord

Maura O'Connor

Mrs Maura O Connor

Tenant Name(s)

Diego Esteban Bertossa

Tenant Signature(s)

Diego Bertossa

Dated

10/02/25

Witness

Tenancy Agreement History

Date: 7 February 2025

Property: 21 Monteray Court Quincentennial Drive Salthill Galway H91 E789

Lease Code: LE6027

PRTB Reference: RT-1122-00344943-24

Operation	Start Date	Expiry Date	Rent €	Deposit €
Initial Unsigned Lease (M)	12Sep2024	11Sep2030	1,336.00	1,100.00
Void Period	12Sep2024	11Oct2024	462.50 (-)	
Void Period	12Sep2024	11Feb2025	4,884.60 (-)	
Tenant Amendment	01Oct2024			

M&C Property PSRA Licence Number: 001231

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Residential Tenancy Agreement

Change of Tenant LE6027

Dated: 7 February 2025

THIS AGREEMENT is made on the date specified above BETWEEN the Landlord and the Tenant(s) and is supplemental to the Original Tenancy Agreement dated 12 September 2024 appended hereto.

All covenants and conditions of the Original Tenancy Agreement remain in force, except as follows:

Amendment(Part C):

Add New Tenant Details Mr Elias Bagueste Amate

Tenant to be Removed

Amendment(Part H):

Effective From: 1 December 2024

Property 21 Monteray Court Quincentennial Drive Salthill Galway H91 E789

Landlord


Mrs Maura O Connor

Tenant Name(s)

Elias Bagüeste Amate

Tenant Signature(s)



Dated

13 / 02 / 2025

Witness

Román Carbonell Guix

M&C Property PSRA Licence Number: 001231



Tenancy Agreement History

Date: 7 February 2025

Property: 21 Monteray Court Quincentennial Drive Salthill Galway H91 E789

Lease Code: LE6027

PRTB Reference: RT-1122-00344943-24

Operation	Start Date	Expiry Date	Rent €	Deposit €
Initial Unsigned Lease (M)	12Sep2024	11Sep2030	1,336.00	1,100.00
Void Period	12Sep2024	11Oct2024	462.50 (-)	
Void Period	12Sep2024	11Feb2025	4,884.60 (-)	
Tenant Amendment	01Oct2024			
Tenant Amendment	01Dec2024			

M&C Property PSRA Licence Number: 001231

9867/1/4934

Diego Esteban Bertosa

Apartment 21
Monterey Court
Quincentennial Drive
Salthill
Galway
Galway
Ireland
H91E789

22 August 2025

This letter is important and should be kept in a safe place.

Your Reference RT Number: RT-1122-00344943-25

(Please quote this reference in all future communications regarding this Tenancy with the Residential Tenancies Board)

Dear Diego Esteban Bertosa,

It is the responsibility of landlords to register residential tenancies with the Residential Tenancies Board (RTB) under the Residential Tenancies Act 2004. I wish to inform you that your landlord has registered your tenancy which commenced on 12 September 2022 with the RTB. The RTB will remind your landlord to register this tenancy each year for so long as it exists.

Section 132 of the Residential Tenancies Act 2004 provides that either party to a tenancy may request a copy of the entry in the Register of Tenancies. This application must be made in writing. Please note that the RTB will request such information as is considered necessary to confirm the identity of the person making an application under section 132.

This letter does not constitute proof of the tenancy or the terms thereof but is merely a confirmation that the tenancy has been registered on foot of the registration particulars provided.

Go to the following web page:

www.rtb.ie/images/uploads/general/Good_Landlord_Tenant_Guide_V4.pdf for the guide titled "The Good Landlord Tenant Guide". The RTB would encourage you to read this guide and inform yourself of your rights, responsibilities and obligations. It is also a useful reference throughout the tenancy should any issues arise. Tenants are encouraged to resolve disputes directly with their landlord(s) if issues arise. If this is not possible, tenants may be entitled to refer a dispute to the Board under section 78 of the Residential Tenancies Act 2004 relating to, for example:

- Rent set under a tenancy or in respect of the rent determined on foot of a review
- Validity of Notice of Termination
- Retention of deposit by landlord at end of tenancy
- Failure by landlord to maintain or repair property or comply with terms of lease

Details in relation to the tenancy may be disclosed to the Revenue Commissioners under section 147A of the Residential Tenancies Act 2004.

Please find enclosed a useful statement that provides information on the Residential Tenancies Act 2004, as amended, including the rights and obligations of tenants and landlords.

Yours sincerely,

**Registrations Department
Residential Tenancies Board**

The RTB respects your privacy and is committed to complying with Data Protection law. For information on how the RTB handle your personal data, please refer to the RTB Privacy Statement at www.rtb.ie/privacy-statement.



Bord um Thionóntachtaí Cónaithe
Residential Tenancies Board

9869/1/4935

Elias Bagueste Amate

Apartment 21
Monterey Court
Quincentennial Drive
Salthill
Galway
Galway
Ireland
H91E789

22 August 2025

This letter is important and should be kept in a safe place.

Your Reference RT Number: RT-1122-00344943-25

(Please quote this reference in all future communications regarding this Tenancy with the Residential Tenancies Board)

Dear Elias Bagueste Amate,

It is the responsibility of landlords to register residential tenancies with the Residential Tenancies Board (RTB) under the Residential Tenancies Act 2004. I wish to inform you that your landlord has registered your tenancy which commenced on 12 September 2022 with the RTB. The RTB will remind your landlord to register this tenancy each year for so long as it exists.

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www.rtb.ie/images/uploads/general/Good_Landlord_Tenant_Guide_V4.pdf for the guide titled "The Good Landlord Tenant Guide". The RTB would encourage you to read this guide and inform yourself of your rights, responsibilities and obligations. It is also a useful reference throughout the tenancy should any issues arise. Tenants are encouraged to resolve disputes directly with their landlord(s) if issues arise. If this is not possible, tenants may be entitled to refer a dispute to the Board under section 78 of the Residential Tenancies Act 2004 relating to, for example:

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**Registrations Department
Residential Tenancies Board**

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Our Ref: 21MTC/LE6027/CL

Date: 20th February 2025

Subject: Confirmation of Tenancy – Mr Elias Bagueste Amate

To whom it may concern,

I wish to confirm that Mr Elias Bagueste Amate, is a tenant at 21 Monteray Court, Quincentennial Drive, Salthill, Galway, H91 E789, since the 01st December 2024 for which M&C Property are the letting agent.

During the tenancy, rent has been paid on time and in full, there have been no complaints or issues with the tenant, and any maintenance has been reported in a timely manner.

Should you have any questions please do not hesitate to call me on 091 - 397497
Yours Sincerely,

Cian Lee

Letting Negotiator

Email: clee@mcp.ie

Phone: 091-397497

LIMERICK OFFICE:
9 Lower Cecil St,
Limerick.
V94 K2Y2
T. 061 432 777

GALWAY OFFICE:
Unit 5A
Liosban Business Park
Tuam Road, Galway, H91 02-1
T 091 397 497

ATHLONE OFFICE:
Unit 3 Summerhill Business Park
Crannagh More, Summerhill
Athlone, Co. Westmeath N37 T2R7
T 090 649 0111

DUBLIN OFFICE:
176 Lower Rathmines Road,
Rathmines,
Dublin 6, D08 TY47
T 01 482 5842



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